

Ram Charan v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 13 April 2015 (order-sheet, 31.5.2011 to 22.4.2016) · WRIT - C No. - 32705 of 2011 · **Writ disposed: unobjected provisional assessment makes recovery valid; petitioner relegated to a Section 127 appeal (4 weeks), decided on merits with limitation not examined**

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HEADNOTE

Order-sheet culminating in a relegation to the statutory appeal. Ram Charan challenged a recovery citation dated 10.5.2011 for Rs.75,220, contending that his regular electricity bills stood paid, that no theft had been alleged against him, and that the procedure under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 had not been followed before recovery was directed; on 31.5.2011 recovery under the citation was stayed on a deposit of Rs.35,000. Disposing of the writ on 13.4.2015, the Division Bench (Tarun Agarwala and Manoj Kumar Gupta, JJ.) found that there were arrears of Rs.46,722 as on 20.3.2009 for which the supply had been disconnected, that on a checking on 1.10.2009 the petitioner was found unauthorisedly using electricity, that an FIR was lodged and a provisional assessment order dated 10.12.2009 for Rs.75,198 was passed, and that the petitioner filed no objection to it, whereupon a recovery certificate issued. The Court held that the petitioner should have filed an objection against the provisional assessment order and, not having done so, the recovery proceedings had been rightly initiated; his remedy was an appeal under Section 127 of the Electricity Act, 2003. The writ was accordingly disposed of directing the petitioner to file a Section 127 appeal within four weeks, which, if filed, would be decided on merits, the appellate authority not going into the question of limitation.

FACTUAL SUMMARY

Ram Charan, a consumer at premises in Uttar Pradesh, was served a recovery citation dated 10 May 2011 (Annexure 3 to the writ) requiring him to deposit Rs.75,220. He filed Writ-C No.32705 of 2011 before the Allahabad High Court contending that his regular electricity bills had been paid (the last bill dated 24.4.2011 for the period 20.2.2011 to 20.3.2011 having been paid on 13.5.2011), that no theft of electricity had been alleged against him, and that the procedure laid down in the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 had not been followed before directing recovery. By an interim order dated 31 May 2011 the Court stayed recovery under the citation on condition that the petitioner deposit Rs.35,000 within four weeks, without prejudice to the parties' rights; that amount was deposited. When the matter was finally heard, the affidavits disclosed that there were arrears of Rs.46,722 towards electricity dues as on 20 March 2009 on account of which the supply had been disconnected, that on a subsequent checking on 1 October 2009 the petitioner was found to be unauthorisedly using electricity, that a First Information Report was lodged, and that a provisional order dated 10 December 2009 was passed calling upon the petitioner to pay Rs.75,198; the petitioner filed no objection to that provisional order and a recovery certificate was consequently issued. After a long series of adjournments the Division Bench of Tarun Agarwala and Manoj Kumar Gupta, JJ. disposed of the writ on 13 April 2015; a later order of 22 April 2016 rejected the petitioner's application for extension of time to comply.

REUSABLE CONSTRUCTIONS

1. Failure to file an objection to a provisional assessment order for unauthorised use of electricity renders the consequent recovery proceedings validly initiated; the assessee cannot, by a writ against the recovery citation, escape the omission to object. **order of 13.4.2015**
2. The remedy against such an assessment is a statutory appeal under Section 127 of the Electricity Act, 2003, to which the writ court relegates the assessee. **order of 13.4.2015**
3. When relegating a belated assessee to the Section 127 appeal, the writ court may fix a period within which to appeal and direct that, if filed within that period, the appeal be decided on merits and the appellate authority not go into the question of limitation. **order of 13.4.2015**
4. A stay of recovery on a part-deposit (here Rs.35,000 against a Rs.75,220 citation), granted without prejudice to the parties' rights, is a mere interim indulgence and does not entitle the assessee to a merits adjudication in the writ where an unobjected provisional assessment exists. **order of 31.5.2011**

HOLDING-UNIT · EA2003::126**RATIO**

Failure to object to a provisional assessment order renders the consequent recovery validly initiated

QUESTION

Where a provisional assessment order is passed for unauthorised use of electricity and the assessee files no objection to it, are the consequent recovery proceedings validly initiated, or can the recovery citation be quashed in a writ?

HOLDING

Validly initiated. The Court found on the affidavits that there were arrears of Rs.46,722 as on 20.3.2009 for which the supply was disconnected, that on a checking on 1.10.2009 the petitioner was found unauthorisedly using electricity, that an FIR was lodged, and that a provisional order dated 10.12.2009 was passed calling upon him to pay Rs.75,198. The petitioner did not file any objection to that provisional order and a recovery certificate consequently issued. The Court held that the petitioner should have filed an objection against the provisional assessment order and, since he did not, the recovery proceedings had been rightly initiated; the writ against the citation could not succeed on the merits. **order of 13.4.2015**

EVIDENCE “On a subsequent checking on 01.10.2009, it was found that the petitioner was unauthorisedly using the electricity and consequently, a First Information Report was lodged and a provisional order dated 10.12.2009 was passed calling upon the petitioner to pay a sum of Rs.75,198/-.” **order of 13.4.2015**

EVIDENCE “The petitioner did not file any objection to this provisional order and consequently a recovery certificate has been issued, which has been challenged in the present writ petition.” **order of 13.4.2015**

EVIDENCE “the petitioner should have filed an objection against the provisional assessment order. Since the same was not done, recovery proceedings have been rightly initiated.” **order of 13.4.2015**

FLAG Order-sheet: 12 pages, multiple dated orders from 31.5.2011 to 22.4.2016, no printed page numbers (a single '(2)' marks the second page of the final order); pins are order dates. The operative disposal is the 13.4.2015 order (Tarun Agarwala and Manoj Kumar Gupta, JJ.); the interim stay of recovery is of 31.5.2011 (Satya Poot Mehrotra and Bharati Sapru, JJ.).

HOLDING-UNIT · EA2003::127**RATIO**

Assessee relegated to the Section 127 appeal, to be decided on merits with limitation not examined

QUESTION

What is the assessee's remedy against such an assessment, and on relegating a belated assessee to the appeal, may the writ court direct that the appeal be decided on merits without going into the question of limitation?

HOLDING

The remedy is a statutory appeal under Section 127 of the Electricity Act, 2003. The Court disposed of the writ directing the petitioner to file a Section 127 appeal within four weeks; if so filed, the appeal would be decided by the appellate authority on merits, and that authority would not go into the question of limitation, so that the delay in resorting to the statutory remedy would not defeat the appeal. **order of 13.4.2015**

EVIDENCE “We, accordingly, dispose of the writ petition directing the petitioner to file an appeal under Section 127 of the aforesaid Act within four weeks from today.” **order of 13.4.2015**

EVIDENCE “If such an appeal is filed by the petitioner, the same shall be decided by the authority concerned on merits and the authority will not go into the question of limitation.” **order of 13.4.2015**

PRINCIPLE TAGS

no-objection-to-provisional-assessment-validates-recovery Where the assessee files no objection to a provisional assessment order for unauthorised use, the recovery proceedings are rightly initiated and a writ against the citation fails; the remedy is the Section 127 appeal. Same Section 126/127 cluster as SCJ-1269, SCJ-1266, SCJ-047. **order of 13.4.2015**

relegation-to-section-127-appeal-on-merits-limitation-not-examined On relegating a belated assessee to the Section 127 appeal, the writ court may fix a time to appeal and direct the appellate authority to decide on merits without going into limitation, neutralising the delay. **order of 13.4.2015**

Recovery under the citation was stayed on a part-deposit (Rs.35,000 against Rs.75,220) without prejudice to the parties' rights; the interim indulgence did not entitle the petitioner to a merits adjudication in the writ. [order of 31.5.2011](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT (THE RS.75,198 DEMAND) AND THE PETITIONER'S CONTENTION THAT THE PROCEDURE UNDER THE ELECTRICITY ACT, 2003 AND THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS NOT FOLLOWED

The Court held only that, no objection having been filed to the provisional order, recovery had been rightly initiated; the merits of the assessment and of the procedural-non-compliance plea were left to be urged in the Section 127 appeal, which was directed to be decided on merits. [order of 13.4.2015](#)

RELATED CASES — SEE ALSO

SCJ-1269 — Companion order-sheet disposed the same way: a provisional/final assessment existed and the petitioner was relegated to the Section 127 appeal with the grounds left open.

SCJ-1266 — Theft/assessment matter relegated to the Section 127 appellate remedy; the assessee must raise his grounds before the appellate authority.

SCJ-047 — Section 126 assessment and Section 127 appeal cluster under the Electricity Act, 2003.

SCJ-1059 — Section 126(3)/127 and the role of the appellate authority; here the writ court relegated the unobjecting assessee to that appeal.